

**BEFORE THE
GOVERNING BOARD OF THE
SAN MARCOS UNIFIED SCHOOL DISTRICT**

In the Matter of the Reduction in Force of:

**EIGHT CERTIFICATED EMPLOYEES OF THE SAN MARCOS
UNIFIED SCHOOL DISTRICT,**

Respondents

OAH No. 2025040477

PROPOSED DECISION

Abraham M. Levy, Administrative Law Judge, Office of Administrative Hearings, State of California, heard this matter by videoconference on April 22, 2025.

Dean T. Adams, Attorney at Law, Adams Silva & McNally L.L.P., represented the San Marcos Unified School District (district).

Dyland Griffith, Attorney at Law, Vanderpool Griffith L.L.P., represented respondents Sarah Ackley, Thomas Briones, Alexandra Filippo, Ryan Griffiths, Devin Lecakes-Jones, Erick Marquez, Hector Miramontes, and Ryan Otten.

Oral and documentary evidence was received. The record was closed, and the matter was submitted for decision on April 22, 2025.

FACTUAL FINDINGS

Jurisdictional Matters

1. On February 13, 2025, the Governing Board (board) of the district adopted Resolution Number 32-24/25, reducing particular kinds of certificated services and directing the Superintendent or designee to give appropriate notice to the certificated employees whose positions would be affected by the reduction. The resolution called for the reduction or discontinuation of 18.0 full-time equivalent (FTE) positions. The resolution identifies the particular kinds of service and FTE(s) positions that are being discontinued and reduced.

2. The decision to reduce or discontinue a particular kind of service is a matter reserved to the district's discretion and is not subject to second-guessing in this proceeding. (*Rutherford v. Board of Trustees of Bellflower Unified School District* (1976) 64 Cal.App.3d 167.) School districts have the discretion to determine particular kinds of services that will be eliminated, even though a service continues to be performed or provided in a different manner by the district. (*Hildebrandt v. St. Helena Unified School Dist.* (2009) 172 Cal.App.4th 334, 343.) A school district's decision to reduce a particular kind of service must not be fraudulent, arbitrary, or capricious. (*San Jose Teachers Association v. Allen* (1983) 144 Cal. App. 3d 627, 637.)

3. In its resolution, the board also established tie-breaking criteria for resolving ties in seniority between employees who first rendered paid service to the district on the same date. The resolution contained four criteria to use to break any ties.

4. On March 7, 2025, Joel Garcia, Ed.D., sent notices to certificated staff advising them that their services would not be required for the 2025-2026 school year. The reasons for that decision, as noted, are in Resolution Number 32-24/25, which he attached. The certificated staff were given until March 21, 2025, to request a hearing. Dr. Garcia advised that the failure to do so waived the right to a hearing. Thereafter, Dr. Garcia served a Statement of Reduction in Force and other documents on the certificated staff who requested a hearing by submitting Notices of Participation.

5. All prehearing jurisdictional requirements have been met.

Evidence Received at Hearing

6. Dr. Garcia testified in this proceeding and several documents were received in evidence. Each of the eight respondents elected to not testify. The findings in this decision are based on the evidence of record. The evidence includes a Seniority List, which highlights each respondent by his or her seniority date, position, subject matter authorization, credentials, and assignment.

7. The district serves 19,000 students at a total of 18 schools, including ten elementary schools, two kindergarten to eighth grade schools, and two comprehensive high schools. The district employs 1,100 certificated staff.

8. In early January 2025, the district discovered it needed to reduce the number of certificated employees due to concerns about the budget for the upcoming school year and multi-year budget projections. Dr. Garcia stated the district identified a very large structural deficit of \$7,500,000, which he described as a huge concern for the district.

9. To identify particular kinds of services to eliminate or reduce, Dr. Garcia worked closely with the district's superintendent of business services and the business services team, and he had discussions with site administrators. In identifying the particular kinds of services to reduce, the district considered attrition and retirement. He and his team identified the following specific kinds of services for reduction:

7th to 12th Grade English/Language Arts Teacher (4.0 FTE),
7th to 12th Grade Math Teacher (4.0 FTE), School Based
Mental Health Specialists (3.0 FTE), 7th to 12th Grade Social
Science Teacher (2.0 FTE), 7th to 12th Grade Physical
Education Teacher (1.0 FTE), 7th to 12th Grade Technology
Teacher (1.0 FTE), 7th to 12th Grade Art Teacher (1.0 FTE),
Social Worker (1.0 FTE), Digital Photography Teacher
(Career Technical Education [CTE], Designated Subjects
Credential in Arts, Media, Entertainment) (1.0 FTE)

10. Dr. Garcia testified that the decision to reduce these services was based on the welfare of the district. The district will not employ temporary teachers in these areas. With the elimination and reductions in services, Dr. Garcia stated that the district will continue to be able to meet its minimum state-mandated staffing requirements.

11. At the February 13, 2025, board meeting, Dr. Garcia presented his recommendation to the board, and the board adopted the resolution as noted.

12. In identifying certificated employees whose services would not be needed in the 2025-2026 school year, the district relied upon the Seniority List it developed. This Seniority List reflected updated information regarding the seniority

and status of each district certificated employee. A senior employee whose position is discontinued has the right to transfer to a continuing position in which he or she is certificated and competent to fill. In doing so, the senior employee is entitled to displace or "bump" a junior employee who is filling that position. (Ed. Code, § 44955; *Lacy v. Richmond Unified School District* (1975) 13 Cal.3d 469, 473-474.) The district applied several bumps. The district did not apply the tie-breaking procedure identified in the Resolution.

13. The district sent out 14 notices identifying the 18 FTE positions to be eliminated. The eight respondents in this proceeding timely filed notices of participation.

Respondents

14. With respect to each respondent who participated in this matter, the district made the following decisions based on the Seniority List and applied bumping rights as applicable:

15. Respondent Lecakes-Jones is tied with respondent Marquez on the seniority date with a seniority date of August 25, 2024. They both teach social sciences. Two people have more seniority than respondent Lecakes-Jones. The district bumped Parisa White into the Social Science position due to her Social Science Authorization, and Ms. White also has more seniority than Mr. Lecakes-Jones with a seniority date of August 22, 2023.

16. Respondent Griffiths is the least senior math teacher and has no bumping rights with a seniority date of August 17, 2024.

17. Respondent Miramontes is proposed for being laid off as a mental health specialist due to the elimination of the School Based Mental Health Services Grant (SBMHS) by the United States Department of Education that funded his position.

18. Respondent Filippo is also being laid off as a mental health specialist due to the elimination of the grant-funded SBMHS position.

19. Respondent Ackley is the least senior Social Science teacher with a seniority date of November 12, 2024. She holds an English Supplemental credential, but she has no bumping rights under this credential.

20. Respondent Marquez has no bumping rights as a Social Science teacher. He has a seniority date of August 22, 2024.

21. Respondent Otten has no bumping rights as a physical education teacher with a seniority date of August 25, 2024. Respondent Otten holds a Business and Finance credential, but he has no bumping rights under this credential.

22. Respondent Briones teaches Digital Photography and is not credentialed. The district has proposed laying him off because effective 2025-2026, the course respondent Briones teaches will require a Single Subject Credential in Art as required for Visual and Performing Arts graduation credits. The course at the district is part of the Career Technical Education pathway designed to prepare students for post-secondary options or careers. Without this credential, Dr. Garcia testified that respondent Briones cannot teach this course because students would not be able to obtain credit for the course. If he were to teach the course, it would be considered a "misassignment." Dr. Garcia testified due to this change in the requirements for credits, the district notified respondent Briones that the course required him to obtain a Single Subject Credential in Art to teach this class. Respondent has not obtained this

credential. Dr. Garcia testified that the decision to lay off respondent Briones was both due to a lack of work and a lack of funds.

LEGAL CONCLUSIONS

Jurisdiction

1. Jurisdiction for this proceeding exists pursuant to Education Code sections 44949 and 44955, and all notices and other requirements of those sections were provided as required.

Applicable Case Law

2. A district may reduce services within the meaning of Education Code section 44955, subdivision (b), "either by determining that a certain type of service to students shall not, thereafter, be performed at all by anyone, or it may 'reduce services' by determining that proffered services shall be reduced in extent because fewer employees are made available to deal with the pupils involved." (*Rutherford v. Board of Trustees* (1976) 64 Cal.App.3d 167, 178-179.)

3. A senior employee whose position is discontinued has the right to transfer to a continuing position in which he or she is certificated and competent to fill. In doing so, the senior employee is entitled to displace or "bump" a junior employee who is filling that position. (Ed. Code, § 44955; *Lacy v. Richmond Unified School District*, *supra*, at 473-474.) No evidence was introduced that the district improperly applied the bumping criteria.

Evaluation and Disposition

4. A preponderance of the evidence sustained the district's statement of reduction in force.

5. The district identified the certificated employees providing the particular kinds of services that the board directed to be reduced or discontinued. Because of the reduction of those particular kinds of services, cause exists pursuant to Education Code section 44955 to give notice to respondents that their services will not be required for the 2025-2026 school year. The cause relates solely to the welfare of the schools and the pupils thereof within the meaning of Education Code section 44949. The services being reduced are particular kinds of services the Education Code allows the board to reduce or eliminate. With respect to the decision to lay off respondent Briones, the district can eliminate his position as a budgetary matter because the position now requires a certification to teach the course, and respondent Briones is not certificated. The district's decision is due to both a lack of funds and a lack of work.

6. No employee with less seniority than any respondent is being retained to perform services respondents are certificated and competent to render.

RECOMMENDATION

It is recommended that before May 15, 2025, the Governing Board give notice to the respondents listed below that their employment will be terminated at the close of the current school year, and their services in those positions will not be needed for the 2025-2026 school year:

Sarah Ackley

Thomas Briones

Alexandra Filippo

Ryan Griffitts

Devin Lecakes-Jones

Erick Marquez

Hector Miramontes

Ryan Otten

DATE: May 1, 2025

A handwritten signature in black ink, appearing to read 'JMC', is positioned above a horizontal blue line.

Abraham M. Levy (May 1, 2025 11:10 PDT)

ABRAHAM M. LEVY

Administrative Law Judge

Office of Administrative Hearings